
URGENT: "Fire Prevention Week" Paradox, P.E. Act Compliance, and Notice of Intent to Mitigate Hazard (Tract 16043)

Marcia Brown <mbrown@yorbalindaca.gov>

Wed, Oct 7, 2026 at 8:50 AM

To: P M <[REDACTED]>, City Clerk <CityClerk@yorba-linda.org>

Cc: Carolina Torres <ctorres@yorbalindaca.gov>, Jamie Lai <jlai@yorbalindaca.gov>, Peter Grant <pgrant@yorbalindaca.gov>, AllCityCouncil <City_Council@yorba-linda.org>, "Litfin, Todd" <tlitfin@rutan.com>, "Morganstern, Mike" <MikeMorganstern@ocfa.org>

Mr. Meng,

The City is in receipt of your email.

Regards,

MARCIA BROWN, CMC

City Clerk
4845 Casa Loma Avenue | Yorba Linda, CA 92886

P: 714-961-7150 **W:** yorbalindaca.gov

CITY of YORBA LINDA



From: P M <[REDACTED]>

Sent: Wednesday, October 7, 2026 8:22 AM

To: City Clerk <CityClerk@yorba-linda.org>

Cc: Carolina Torres <ctorres@yorbalindaca.gov>; Marcia Brown <mbrown@yorbalindaca.gov>; Jamie Lai <jlai@yorbalindaca.gov>; Peter Grant <pgrant@yorbalindaca.gov>

Subject: URGENT: "Fire Prevention Week" Paradox, P.E. Act Compliance, and Notice of Intent to Mitigate Hazard (Tract 16043)

Attention Office of the City Clerk: Please ensure this formal notice is distributed immediately to the Mayor, the City Council, the City Manager, the City Attorney, and the acting OCFA Division/Fire Chief for Yorba Linda.

Dear Mayor, Members of the City Council, City Manager, and Fire Chief,

I am submitting this follow-up to the official record of the October 6, 2026, City Council meeting to address a severe contradiction in this City's public safety policy.

During last night's session, the Council issued a "Proclamation Declaring Fire Prevention Week." In his presentation, the Fire Chief delivered critical warnings to residents about the dangers of leaving a vehicle charging overnight, the necessity of having smoke detectors in the garage, and the sobering reality that a standard residential firewall shielding a garage only provides a temporary, one-hour protection against a blaze.

While I applaud the Chief for addressing residential fire risks, this presentation exposed a glaring administrative paradox at the highest levels of Yorba Linda's government.

It is intellectually and legally indefensible for the City to warn residents that their firewalls will fail after just one hour against a garage fire, while this exact Council is actively spending \$365,602 in public LMAD funds to irrigate, maintain, and protect a dense, highly combustible forest of pine and pepper trees directly over capped, high-pressure utility lines on the Chicago Avenue slope. A convective fire from this overgrown canopy would breach those temporary residential firewalls in a fraction of that time, yet the City preserves this unmitigated fuel load as an illegal spite fence for a single neighbor's visual preference.

The Legal Mandate vs. Administrative Overreach As a California-licensed Professional Engineer (License #63423), I am bound by the Professional Engineers Act (Business and Professions Code § 6700 et seq. and 16 CCR § 404) to prioritize and safeguard life, health, property, and public welfare. I have repeatedly disclosed this imminent peril in a stamped P.E. Safety Report.

In a prior public comment session, City Attorney Todd Litfin stepped outside his administrative bounds to publicly rebuke and interfere with my professional assessment of this hazard. A municipal attorney's directive to maintain a localized nuisance does not—and cannot—override a Professional Engineer's statutory duty to protect public infrastructure and human life from catastrophic fire and geomorphological hazards under state law.

Notice of Intent to Mitigate & Timeline for Response

We are weeks away from a City Council election where incumbents are asking residents to trust them with community safety. The voters of Yorba Linda have a right to know if their elected officials prioritize the Fire Chief's "Fire Prevention Week" standards, or if they will continue funding public hazards against the explicit warnings of a licensed engineer.

Because this City has failed to produce a P.E.-stamped technical rebuttal to my safety reports, and because Willdan Financial Services continues to evade its contractual duties, the hazard remains unmitigated.

Therefore, in alignment with my obligations under the California Professional Engineers Act, and to protect my deeded property and the surrounding neighborhood from the thermal-ignition risk to these pipelines, I am asserting my right to proceed with the immediate clearance of this hazardous fuel load.

If I do not receive a formal, P.E.-stamped technical injunction from the City Engineer proving this fuel load is safe by Wednesday, October 14, 2026, the City's silence will be legally construed as an administrative admission of the hazard and a waiver of objection to its removal.

If the City or its legal counsel intends to physically or legally obstruct a licensed engineer from removing a documented fire hazard on his deeded property, I demand that the City Attorney provide a formal, written assumption of all civil and criminal liability for any subsequent pipeline ignition or slope failure event.

The complete technical record remains available for public and regulatory review at: <https://github.com/ca-lmad-auditors/yorba-linda-lmad-compliance-audit>

Govern yourselves accordingly.

Peter Meng, P.E.

Licensed California Professional Engineer

Deeded Property Owner, Chicago Avenue Slope Corridor